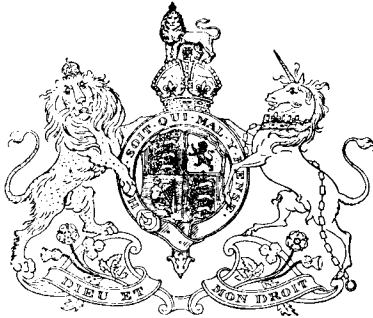


[3 EDW. 7.]

Local Government Board's [Ch. lxxxi.]
Provisional Order Confirmation (No. 16) Act, 1903.



CHAPTER lxxxi.

An Act to confirm a Provisional Order of the Local Government Board relating to the Counties of London and Surrey. A.D. 1903.
[21st July 1903.]

WHEREAS the Local Government Board have made the Provisional Order set forth in the schedule hereto under the provisions of the Local Government Act 1888 :

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order as altered and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Local Government Board's Short title. Provisional Order Confirmation (No. 16) Act 1903.

A.D. 1903.

S C H E D U L E.

COUNTIES OF LONDON AND SURREY.

London and Surrey Order. *Provisional Order made in pursuance of Sections 54 and 59 of the Local Government Act 1888 for altering the Boundary between Counties.*

To the Justices of the Peace for the County of London in Quarter Sessions assembled ; —
To the London County Council ; —
To the Justices of the Peace for the County of Surrey in Quarter Sessions assembled ; —
To the County Council of Surrey ; —
To the Sheriffs of the Counties of London and Surrey ; —
To the Mayor Aldermen and Councillors of the Metropolitan Borough of Wandsworth ; —
To the School Board for London ; —
To the Guardians of the Poor of the Croydon Union and of the Wandsworth and Clapham Union ; —
To the Rural District Council of Croydon ; —
To the Parish Council of Mitcham ; —
To the Overseers of the Poor of the Parish of Mitcham ; —
To the School Board for the Parish of Mitcham or the Local Education Authority as the case may be ; —
To the Board of Management of the North Surrey District School ; —
To the Board of Management of the Metropolitan Asylum District ; —
To the Croydon and Wimbledon Joint Small-pox Hospital Board ; —
And to all others whom it may concern.

51 & 52 Vict.
c. 41.

WHEREAS by Section 54 of the Local Government Act 1888 the Local Government Board are empowered to make a Provisional Order for altering the boundary of any County and by such Order to divide or alter any electoral division ;

And whereas the Parish of Tooting Graveney forms part of the County of London and is included in the Wandsworth Electoral Division the South-Western Coroner's District and the Wandsworth Petty Sessional Division of that County and in the division assigned to the South-Western Police Court within the Metropolitan Police District ;

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And whereas the Parish of Mitcham forms part of the County of Surrey and is included in the Mitcham Electoral Division the Reigate Coroner's District and the Croydon Petty Sessional Division of that County; A.D. 1903.

*London and
Surrey Order.*

And whereas the said Parish of Tooting Graveney is included in the Wandsworth and Clapham Union and the said Parish of Mitcham is included in the Croydon Union;

And whereas the Metropolitan Borough of Wandsworth is a Metropolitan Borough within the meaning of the London Government Act 1899 and a Council has been established and incorporated for the Metropolitan Borough under the name of the Mayor Aldermen and Councillors of the Metropolitan Borough of Wandsworth and the Metropolitan Borough includes the said Parish of Tooting Graveney; 62 & 63 Vict.
c. 14.

And whereas the said Metropolitan Borough is divided into nine wards for the purpose of the election of Councillors and of the said wards that named the Tooting Ward includes the said Parish of Tooting Graveney and three Councillors are assigned to that ward;

And whereas by virtue of the London Government Act 1899 the London (Adoptive Acts) Scheme 1900 and the Borough of Wandsworth (Adoptive Acts) Scheme 1902 the Baths and Washhouses Acts 1846 to 1896 and the Public Libraries Acts 1892 to 1901 are administered by the Council of the said Metropolitan Borough uniformly throughout the parishes comprised in the Metropolitan Borough and the said Metropolitan Borough forms a single district for the purposes of those Acts; 9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
55 & 56 Vict. c. 53.
56 Vict. c. 11.
1 Edw. 7. c. 19.

And whereas in pursuance of the London Government Act 1899 it is proposed that a scheme shall provide for the union of the several parishes comprised in the said Metropolitan Borough so as to form one parish and also for other purposes being matters to be regulated by a scheme under the London Government Act 1899 or purposes for which such a scheme may be made or may provide;

And whereas the said Parish of Mitcham is a contributory place in the Rural District of Croydon and is subject to the jurisdiction of the Rural District Council of Croydon;

And whereas the Rural District Council of Croydon have adopted the provisions of—

(a) The Infectious Disease (Prevention) Act 1890; and

(b) Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts;

53 & 54 Vict.
c. 34.
53 & 54 Vict.
c. 59.

and those provisions are accordingly in force in the said Rural District;

And whereas the said Parish of Mitcham is a Rural Parish within the meaning of the Local Government Act 1894 for which a Parish Council has been established; 56 & 57 Vict.
c. 73.

And whereas the Lighting and Watching Act 1833 and the Burial Acts 1852 to 1900 have been adopted for the said Parish of Mitcham and the Parish Council of that parish is the authority for the execution of those Acts; 3 & 4 Will. 4. c. 90.
15 & 16 Vict. c. 85.
63 & 64 Vict. c. 15.

[Ch. lxxxii.] *Local Government Board's* [3 EDW. 7.]
Provisional Order Confirmation (No. 16) Act, 1903.

A.D. 1903. And whereas for the purposes of elementary education the said Parish of
London and Surrey Order. Tooting Graveney forms part of the school district of the School Board for London and for the purpose of the election of members of that school board is included in the West Lambeth Division and the said Parish of Mitcham will on and after the appointed day within the meaning of the Education Act 1902 be within the area of the County Council of Surrey as the local education authority ;

61 & 62 Vict.
c. lxxvii. And whereas by the Croydon and Wimbledon Joint Small-pox Hospital Order 1898 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1898 certain districts therein referred to including the Rural District of Croydon were formed into a united district called the Croydon and Wimbledon Joint Small-pox Hospital District for the purposes of the provision maintenance and management of a hospital or hospitals for the reception of cases of small-pox ;

And whereas by a Provisional Order to be submitted to Parliament for confirmation during the present Session it is proposed to alter the last-mentioned Act so far as that Act relates to the Croydon and Wimbledon Joint Small-pox Hospital Order 1898 and to provide for the extension of the Croydon and Wimbledon Joint Small-pox Hospital District :

51 & 52 Vict.
c. 41. Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect :—

Definitions. Art. I. In this Order the following expressions shall unless the contrary intention appears have the meanings hereby respectively assigned to them that is to say,—

- (1) The expression “ the commencement of this Order ” means the First day of April One thousand nine hundred and four ;
- (2) The expression “ the existing Borough ” means the Metropolitan Borough of Wandsworth as it existed immediately prior to the commencement of this Order ;
- (3) The expression “ the Borough ” means the existing Metropolitan Borough of Wandsworth as altered by this Order ;
- (4) The expression “ the Borough Council ” means the Mayor Aldermen and Councillors of the existing Borough or of the Borough (as the context may require) ;
- (5) The expressions “ the Rural District ” and “ the Rural Council ” mean respectively the Rural District of Croydon and the Rural District Council of that district ;
- (6) The expression “ the maps ” means the three maps each marked “ Map showing the alteration of the boundary between the Counties of London and Surrey 1903 ” and sealed with the official seal of the Local Government Board ;

- (7) The expression "the Tooting Graveney areas" means the parts of the existing Parish of Tooting Graveney which are coloured green on the maps ;
- (8) The expression "the Mitcham area" means the part of the existing Parish of Mitcham which is coloured pink on the maps ;
- (9) The expressions "the Act of 1888" "the Act of 1894" and "the Act of 1899" mean respectively the Local Government Act 1888 the Local Government Act 1894 and the London Government Act 1899 ;
- (10) The expression "the Scheme" means as the case may be the scheme or any provisions of the scheme which at the date of this Order it is proposed in pursuance of the Act of 1899 to prepare and settle for the formation of a parish by the union of the several parishes comprised in the existing Borough and for other matters and purposes mentioned in the Act of 1899 ;
- (11) The expression "the Metropolitan Parish" means as the case may be the parish formed and constituted by the Scheme if the Scheme is confirmed and becomes operative before or at the commencement of this Order or if the Scheme is not confirmed or does not become operative before or at the commencement of this Order the Parish of Tooting Graveney as altered by this Order ;
- (12) The expression "the Wandsworth and Clapham Union" means the poor law union as constituted and known under that style or name at the date of this Order and if the Scheme is confirmed and becomes operative before or at the commencement of this Order includes that poor law union as constituted under any style or name mentioned in and assigned by the Scheme.

A.D. 1903.

*London and
 Surrey Order.*

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the First day of April One thousand nine hundred and four :

Commence-
 ment of Order.
 Date of opera-
 tion of Order
 for lists of
 electors &c.

Provided as follows:—

- (1) For the purpose of the enactments and provisions relating to the relief of the poor and of all such other enactments and provisions as relate to the powers duties and expenses of boards of guardians of the managers of the Metropolitan Asylum District and of the managers of school districts and for the purpose of assessing on poor law unions the sums to be contributed by them to the metropolitan common poor fund this Order shall operate on the Twenty-sixth day of March One thousand nine hundred and four ;
- (2) For the purposes of all proceedings preliminary or relating to any election of County Councillors to be held on the ordinary day of election in the year one thousand nine hundred and four or to any ordinary election of Guardians or of Rural District Councillors to be held in that year this Order shall come into operation at such earlier date as may be necessary.

[Ch. lxxxi.] *Local Government Board's* [3 EDW. 7.]
Provisional Order Confirmation (No. 16) Act, 1903.

A.D. 1903.

*London and
Surrey Order.*
Alteration of
county
boundaries.

Art. III. The boundary between the Counties of London and Surrey shall be altered as follows :—

- (a) The Tooting Graveney areas shall cease to form part of the Administrative County of London and shall form part of the Administrative County of Surrey; and
- (b) The Mitcham area shall cease to form part of the Administrative County of Surrey and shall form part of the Administrative County of London.

Deposit of
maps.

Art. IV.—(1) One of the maps shall be deposited in the office of the Local Government Board one shall be deposited by the clerk to the London County Council at the office of that Council and the other shall be deposited by the clerk to the County Council of Surrey at the office of that Council within fourteen days after the date of this Order. Copies of the map deposited with the clerk to the London County Council certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the town clerk of the existing Borough to the clerk to the Rural Council to the sheriffs of the Counties of London and Surrey and to the Board of Agriculture.

Copies of
map to be
evidence.

(2) Copies of or extracts from the map deposited with the clerk to the London County Council certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of such map so far as the same relates to the alteration in pursuance of this Order of the boundary between the Counties of London and Surrey and such map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the parishes affected by this Order and any such person shall be entitled to a copy of or extract from such map certified by the clerk to the London County Council to be true on payment of a reasonable fee for every such copy or extract. All sums received under this Article shall be carried to the credit of the county fund of the County of London.

Transfer of
lists of pris-
oners &c.

Art. V. Lists of prisoners writs process and particulars and all records and documents relating to or to be executed in connexion with any action or proceeding pending or existing at the commencement of this Order and appertaining to the Tooting Graveney areas or the Mitcham area shall be delivered turned over or transferred and signed in like manner in all respects so nearly as circumstances admit as is required to be done upon a new sheriff coming into office in like manner as if the sheriff of the County to which the said areas or area are or is hereby added were as respects those areas or that area the new sheriff in succession to the sheriff of the County from which the areas or area are or is transferred.

Petty Sessional
Divisions
Coroner's
Districts and
Metropolitan
Police Court
District.

Art. VI.—(1) The Tooting Graveney areas shall be included in the Croydon Petty Sessional Division of the County of Surrey until the Quarter Sessions of that County otherwise direct and shall be included in the Reigate Coroner's District of that County subject to any alteration which may be made in that District.

[3 EDW. 7.] *Local Government Board's* [Ch. lxxxii.]
Provisional Order Confirmation (No. 16) Act, 1903.

(2) The Mitcham area shall be included in the Wandsworth Petty A.D. 1903.
 Sessional Division of the County of London until the Quarter Sessions of ^{London and}
 that County otherwise direct and shall be included in the South-Western ^{Surrey Order.}
 Coroner's District of that County subject to any alteration which may be
 made in that District.

(3) The Tooting Graveney areas shall cease to form part of any
 division assigned to a police court within the Metropolitan Police District
 and the Mitcham area shall be included in the division assigned to the
 South-Western Police Court within the Metropolitan Police District.

(4) Notwithstanding the foregoing provisions of this Article every person
 committing an offence in the Tooting Graveney areas or in the Mitcham area
 before the commencement of this Order shall be tried adjudicated on and dealt
 with as if this Order had not been made and every proceeding which before
 the commencement of this Order has been begun in any police court within
 the Metropolitan Police District or by or before any justice or justices in
 relation to any matter arising in or concerning any part of the Tooting
 Graveney areas or of the Mitcham area as the case may be may be carried
 on continued or completed in like manner and with the like incidents and
 consequences as nearly as may be as if this Order had not been made.

Art. VII. Subject to the provisions of Section 54 of the Act of 1888 the Electoral
 Tooting Graveney areas shall be included in the Mitcham Electoral Divisions.
 Division of the County of Surrey and the Mitcham area shall be included in the
 Wandsworth Electoral Division of the County of London.

Art. VIII.—(1) The Tooting Graveney areas shall cease to form part of Alteration of
 the existing Borough and shall be added to the Rural District and the persons Borough and
 who immediately prior to the commencement of this Order are the Rural Rural District.
 District Councillors representing the said Parish of Mitcham shall be deemed
 to represent that parish as hereby altered as if they had been originally
 elected to represent the altered parish.

(2) The Mitcham area shall cease to form part of the Rural District and
 shall be added to the existing Borough and included in the Tooting Ward
 of the Borough and the persons who immediately prior to the commence-
 ment of this Order are the Borough Councillors representing that ward shall
 be deemed to represent that ward as hereby altered as if they had been
 originally elected to represent the altered ward.

Art. IX.—(1) For the purposes of the lists of county electors the County elec-
 county registers and other lists to be made under the County Electors Act tors' lists &c.
 1888 and the Acts amending the same and all matters in relation thereto the
 Tooting Graveney areas shall be deemed to have always been parts of the
 County of Surrey and the Mitcham area shall be deemed to have always been
 part of the County of London.

(2) For the purposes of the parliamentary register of electors of the
 local government register of electors of the register of parochial electors and
 of jury lists in force at the commencement of this Order the Counties of

[Ch. lxxxi.] *Local Government Board's* [3 EDW. 7.]
Provisional Order Confirmation (No. 16) Act, 1903.

A.D. 1903. London and Surrey and (subject to the Scheme if the Scheme is confirmed and becomes operative before or at the commencement of this Order) the Metropolitan Parish and the Parish of Mitcham shall be deemed to continue unaltered till the new registers and lists come into operation :

London and Surrey Order.

Provided that for the purposes of any election under the Act of 1888 the Act of 1894 or the Act of 1899 to be held for any area affected by this Order and of the holding of parish meetings in the Parish of Mitcham the clerk to the London County Council or the clerk to the County Council of Surrey as the case may require shall if and when necessary cause the register of county electors and the registers of parochial electors to be altered in such manner as may be requisite to give effect to this Order.

Application to transferred areas of law in force in parishes to which transferred.

Art. X.—(1) Subject to the provisions of this Order all Acts whether general or local which do not apply to the existing Parish of Mitcham shall be repealed so far as they apply to the Tooting Graveney areas and all Acts whether general or local which at the commencement of this Order apply to and are in force in the existing Parish of Mitcham shall apply to and be in force in the Tooting Graveney areas in like manner as to and in the rest of the Parish of Mitcham.

(2) Subject to the provisions of this Order of the London (Miscellaneous) Scheme and of the Scheme if the Scheme is confirmed and becomes operative before or at the commencement of this Order all Acts whether general or local which do not apply to the Metropolitan Parish shall be repealed so far as they apply to the Mitcham area and all Acts whether general or local which apply to and are in force in the Metropolitan Parish shall apply to and be in force in the Mitcham area in like manner as to and in the rest of the Metropolitan Parish.

Byelaws &c.]

Art. XI. Subject to the provisions of this Order and of the Scheme if the Scheme is confirmed and becomes operative before or at the commencement of this Order—

(1) All byelaws orders and regulations and every list of tolls and table of fees and payments and scale of charges made by the London County Council or the Metropolitan Board of Works which at the commencement of this Order are in force in the Metropolitan Parish shall from and after that date apply to and be in force within the Mitcham area and all byelaws orders and regulations and every list of tolls and table of fees and payments and scale of charges made by the County Council of Surrey which on the said date are in force in the Parish of Mitcham shall from and after that date apply to and be in force within the Tooting Graveney areas and any such byelaws orders regulations list of tolls and table of fees and payments and scale of charges in force immediately before the said date in the Tooting Graveney areas or the Mitcham area shall on that date cease to be in force :

[3 Edw. 7.] *Local Government Board's* [Ch. lxxxii.]
Provisional Order Confirmation (No. 16) Act, 1903.

(2) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Borough Council or any authority whose powers and duties have been transferred to the Borough Council or by the Rural Council or their predecessors which at the commencement of this Order are in force in the existing Borough or in the existing Parish of Mitcham as the case may be shall thenceforth apply to the Borough or to the Parish of Mitcham as hereby altered as the case may be until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed and all byelaws and regulations and every list of tolls and table of fees and payments and scale of charges in force immediately before the commencement of this Order in the Tooting Graveney areas or the Mitcham area shall on that date cease to be in force :

A.D. 1903.
—
*London and
Surrey Order.*

(3) As regards any work to which the provisions of the London Building Acts 1894 and 1898 and the byelaws regulations and tables of fees of the London County Council made thereunder apply which shall have been commenced before the commencement of this Order and as regards any work to which the said provisions byelaws regulations and tables of fees apply the construction or erection of which shall have been duly sanctioned or approved before the commencement of this Order in pursuance of those provisions byelaws or regulations or the construction or erection of which in pursuance of those provisions byelaws and regulations is to be deemed to have been sanctioned or approved before the commencement of this Order the said provisions byelaws regulations and tables of fees shall continue to apply as if the Tooting Graveney areas continued to form part of the County of London and as if the Rural Council were a local authority within the meaning of those provisions byelaws and regulations :

(4) As regards any work commenced before the commencement of this Order or any work for which plans shall either have been approved by the Rural Council before that date or shall have been sent to the surveyor or clerk to the Rural Council one month at least before that date and shall not have been disapproved by that Council the byelaws in force immediately before the said date shall continue to apply until the completion of such work in like manner and with the like effect as if such byelaws had been made by the Borough Council and as if the Borough Council and the Borough were referred to therein instead of the Rural Council and the Rural District respectively :

Provided that any proceedings which might have been taken by the Rural Council against any person for any offence committed before the said date against any byelaws made by the Rural Council or their predecessors and in force on that date in the Mitcham area

[Ch. lxxxi.] *Local Government Board's* [3 EDW. 7.]
Provisional Order Confirmation (No. 16) Act, 1903.

A.D. 1903. may be taken by the Borough Council as if those byelaws had remained
London and in force and the Borough Council had been substituted therein for
Surrey Order. the Rural Council.

Compensation Art. XII.—(1) The provisions of Section 120 of the Act of 1888 shall
to existing apply to any officer of the County Council of London or Surrey who
officers. by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any such direct pecuniary loss as is in that section mentioned.

(2) Every other officer and servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary shall be entitled to have compensation paid to him for such pecuniary loss and in determining such compensation regard shall be had to the conditions and other circumstances required by sub-section (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned. A joint committee of the County Councils of London and Surrey shall determine to what local authority application shall be made for compensation and out of what fund such compensation if any shall be paid by that authority and the provisions of sub-sections (2) to (7) of the said Section 120 shall apply with the substitution of the "authority" for the "County Council" and with such other alterations if any as may be required.

Town clerk Art. XIII. The town clerk and all other officers and servants of the
and other Borough Council and the clerk and all other officers and servants of the
officers con- Rural Council who hold office at the commencement of this Order shall
tinued. continue to be the town clerk and officers and servants of the Borough Council or the clerk and officers and servants of the Rural Council as the case may be and shall hold their offices by the same tenure as at that date.

Actions &c. Art. XIV.—(1) If at the commencement of this Order any action or
not to abate. proceeding or any cause of action or proceeding is pending or existing by or against the London County Council or the Borough Council in relation exclusively to any part of the Tooting Graveney areas or by or against the Surrey County Council or the Rural Council in relation exclusively to any part of the Mitcham area the same shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Surrey County Council or the Rural Council or by or against the London County Council or the Borough Council as the case may be.

Saving for (2) Anything duly done or suffered and all contracts deeds bonds agree-
contracts &c. ments and other instruments (subsisting at the commencement of this Order) entered into or made by the London County Council or the Borough Council in relation exclusively to any part of the Tooting Graveney areas or by the Surrey County Council or the Rural Council in relation exclusively to any part of the Mitcham area shall be of as full force and effect against or in

favour of the Surrey County Council or the Rural Council or of the London County Council or the Borough Council as the case may be and may be continued and enforced as fully and effectually as if in the one case instead of the London County Council or the Borough Council the Surrey County Council or the Rural Council and in the other case instead of the Surrey County Council or the Rural Council the London County Council or the Borough Council had done or suffered the same or been a party thereto.

A.D. 1903.
*London and
Surrey Order.*

Art. XV. All property vested in the Borough Council at the commencement of this Order for the benefit of the existing Borough shall be held by the Borough Council for the benefit of the Borough and the Borough Council shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exercisable by or vested in the Borough Council for the benefit of the existing Borough and all liabilities which at the commencement of this Order attach to the Borough Council in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

Borough
Council pro-
perty &c.

Art. XVI. Subject to the provisions of this Order—

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Borough Council in relation exclusively to the Tooting Graveney areas shall be transferred to vested in and attach to the Rural Council and any property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council in relation exclusively to the Mitcham area shall be transferred to vested in and attach to the Borough Council and any property and liabilities vested in or attached to the Borough Council or the Rural Council in relation to any part of the Tooting Graveney areas or to the Mitcham area as the case may be conjointly with the remainder of their respective districts or of part thereof shall be a matter for adjustment under Section 62 of the Act of 1888 :

Property &c.
of Borough
Council and
Rural Council
in relation to
transferred
areas.

(2) The Borough Council and the Rural Council shall respectively at the commencement of this Order cease to exercise any powers or have any duties within any area separated by this Order from their district :

Cesser of juris-
diction of
Borough Coun-
cil and Rural
Council.

(3) All arrears of rates made by the Borough Council which at the commencement of this Order are due or owing in respect of hereditaments in the Tooting Graveney areas shall be collected and recovered as if this Order had not been made and all arrears of rates made by the Overseers of the Poor of the Parish of Mitcham for the purposes of the Public Health Acts or for highway expenses or for the purposes of the Lighting and Watching Act 1833 which at the commencement of this Order are due or owing in respect of hereditaments in the Mitcham area may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied in the case of rates

Arrears of
rates &c.

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made for the purposes of the Public Health Acts or for highway expenses towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied or in the case of rates made for the purposes of the Lighting and Watching Act 1833 towards defraying any expenses incurred by the Parish Council of Mitcham under the last-mentioned Act.

Urban powers
in force in
Mitcham.

Art. XVII. All the powers rights duties capacities liabilities and obligations of an Urban District Council with which the Rural Council are invested in pursuance of any Order issued by the Local Government Board under the Public Health Acts in respect of the contributory place of Mitcham shall be deemed as from the commencement of this Order to vest in and attach to the Rural Council in respect of the contributory place of Mitcham as altered by this Order.

Alteration of
Joint Small-
pox Hospital
District.

Art. XVIII.—(1) The Croydon and Wimbledon Joint Small-pox Hospital District shall be altered by the exclusion therefrom of the Mitcham area and by the inclusion therein of the Tooting Graveney areas and any reference in the Croydon and Wimbledon Joint Small-pox Hospital Order 1898 and in any Provisional Order which may be confirmed by Parliament during the present Session for the extension of the said Hospital District to the Rural District and the Rural Council shall be deemed to apply to the Rural District as altered by this Order and the Council of that District and the expressions “Constituent Districts” and “Constituent Authority” or “Constituent Authorities” shall be deemed to include the Rural District as altered by this Order and the Council of that District as the case may be.

Alteration of
Metropolitan
Asylum Dis-
trict and North
Surrey School
District.

(2) The Metropolitan Asylum District and the North Surrey School District shall be respectively altered by the exclusion therefrom of the Tooting Graveney areas and by the inclusion therein of the Mitcham area.

Mortgage
debts of autho-
rities affected
by the Order.

Art. XIX. So much of any sums borrowed by any authority whose district is altered by this Order as will at the commencement of this Order be owing and charged upon any fund or rate of the existing district of the authority shall be charged upon the same fund or rate of the district as altered by this Order and all such sums shall together with the interest to accrue due thereon be repaid by such authority within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

School dis-
tricts &c.

Art. XX.—(1) Subject to the provisions of any Act to be passed in the present Session of Parliament the Tooting Graveney areas shall cease to form part of and the Mitcham area shall be included in and form part of the district of the London School Board and for the purpose of the election of members of that School Board the last-mentioned area shall form part of the West Lambeth Division and the persons who immediately before the commencement of this Order are the members of the School Board representing

[3 EDW. 7.] *Local Government Board's* [Ch. lxxxii.]
Provisional Order Confirmation (No. 16) Act, 1903.

that division shall be deemed to have been elected for and shall represent that division as hereby altered. A.D. 1903.

(2) For the purposes of the Elementary Education Acts 1870 to 1900 any byelaws made by the School Board for London in force at the commencement of this Order shall thenceforth apply to the Mitcham area until revoked or altered and any byelaws previously in force shall cease to be in force in that area. *London and Surrey Order.*

(3) For the purposes and subject to the provisions of the Education Acts 1870 to 1902 any byelaws in force at the commencement of this Order within the Parish of Mitcham shall thenceforth apply to the Tooting Graveney areas and any byelaws previously in force shall cease to be in force in the Tooting Graveney areas.

Art. XXI.—(1) (a) Subject to the provisions of the Scheme if the Scheme is confirmed and becomes operative before or at the commencement of this Order the Borough Council shall be the Burial Board for the Borough and shall have within the Borough to the exclusion of any other burial authority all the powers rights duties and liabilities of a Burial Board under the Burial Acts 1852 to 1900: Alteration of burial area.

(b) The Tooting Graveney areas shall be included in and form part of the area over which the powers and duties of the authority under the Burial Acts 1852 to 1900 are exerciseable by the Parish Council of Mitcham and the Mitcham area shall cease to form part of that area:

(c) Nothing in this Order shall prejudice or affect any right of burial which any parishioner or inhabitant of the Tooting Graveney areas or of the Mitcham area may have acquired prior to the commencement of this Order in relation to any existing burial ground or any exclusive right of burial or any right of one or more burials or any right of placing any monument tablet or gravestone or any similar right which any person may have acquired prior to the commencement of this Order in relation to any existing burial ground. Saving rights of burial.

(2) The Tooting Graveney areas shall be included in and form part of the area over which the powers and duties of the authority under the Lighting and Watching Act 1833 are exerciseable by the Parish Council of Mitcham. Alteration of area under the Lighting and Watching Act 1833.

Art. XXII.—(1) The Tooting Graveney areas shall cease to form part of the Metropolitan Parish and shall be amalgamated with the Parish of Mitcham. Alteration in areas of parishes.

(2) The Mitcham area shall cease to form part of the Parish of Mitcham and shall be amalgamated with the Metropolitan Parish.

(3) If the Scheme is confirmed and becomes operative before or at the commencement of this Order for the purpose of the election of Guardians the Mitcham area shall be included in and form part of that ward of the Metropolitan Parish which in pursuance of the Scheme will comprise the area or the greater part of the area of the Parish of Tooting Graveney as existing at the commencement of the Scheme and the persons who immediately before the commencement of this Order are the Guardians representing the said ward

[Ch. lxxxii.] *Local Government Board's* [3 EDW. 7.]
Provisional Order Confirmation (No. 16) Act, 1903.

A.D. 1903. shall be deemed to represent that ward as altered by this Order as if they had originally been elected to represent the altered ward.

*London and
Surrey Order.*

(4) If the Scheme is not confirmed or does not become operative before or at the commencement of this Order the Mitcham area shall for the purpose of the election of Guardians be included in and form part of the Metropolitan Parish and the persons who immediately before the commencement of this Order are the Guardians representing the Parish of Tooting Graveney as then existing shall be deemed to represent the Metropolitan Parish as if they had originally been elected to represent the Metropolitan Parish.

Saving for
ecclesiastical
divisions and
charities.

Art. XXIII. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of either of the existing Parishes of Tooting Graveney or Mitcham.

Parish
Council.

Art. XXIV. The Parish Council of Mitcham shall be deemed to have been elected and shall be the Parish Council for that parish as altered by this Order.

County rate
basis.

Art. XXV. Subject to any future revision the basis or standard of county rate for the County of Surrey shall be deemed to be altered as follows:—

- (1) By the addition to the basis or standard for the County of Surrey in respect of the Parish of Mitcham of the sum which represents the assessable value of the property in the Tooting Graveney areas and by the deduction from that basis or standard in respect of the Parish of Mitcham of such a sum as will represent the annual value of the property in the Mitcham area:
- (2) For the purposes of this Article the sum which will represent the annual value of the property in the Mitcham area shall be the amount which in relation to the amount appearing in the basis or standard of county rate as the total annual value of the existing Parish of Mitcham is in the same proportion as the assessable value of the property in the area bears to the total assessable value of property in the existing parish:
- (3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to such list of the buildings and other hereditaments not being agricultural land in the existing parish or the Tooting Graveney areas or the Mitcham area as the case may require.

Art. XXVI.—(1) If the Scheme is confirmed and becomes operative before or at the commencement of this Order—

- (a) The valuation list of the Metropolitan Parish shall be altered by the omission of all reference to the rateable hereditaments in the Tooting Graveney areas and the valuation list of the Parish of Mitcham shall be altered by the omission of all reference to the rateable hereditaments in the Mitcham area;

A.D. 1903.

*London and
Surrey Order.*
32 & 33 Vict.
c. 67.

(b) The portion of the valuation list of the Parish of Mitcham which will at the commencement of this Order relate to hereditaments in the Mitcham area shall for the purposes of the Valuation (Metropolis) Act 1869 and the Acts amending the same be deemed to form a supplemental valuation list for the Metropolitan Parish as if it were a supplemental valuation list duly made in pursuance of those Acts and coming into force on the Sixth day of April One thousand nine hundred and four :

(c) The portion of the valuation list of the Metropolitan Parish which will at the commencement of this Order relate to hereditaments in the Tooting Graveney areas shall until a new valuation list for the Parish of Mitcham is in force form part of the valuation list of the Parish of Mitcham.

(2) If the Scheme is not confirmed or does not become operative before or at the commencement of this Order paragraphs (a) (b) and (c) of subdivision (1) of this Article shall apply and have effect as if for references to the Metropolitan Parish there were substituted references to the Parish of Tooting Graveney as existing immediately before the commencement of this Order.

(3) Subject to the provisions of the Scheme if the Scheme is confirmed and becomes operative before or at the commencement of this Order the Assessment Committees of the Wandsworth and Clapham Union and the Croydon Union shall take all necessary steps to give effect to the provisions of this Article.

(4) Where any difficulty arises in giving effect to the provisions of this Article and in the opinion of the Local Government Board the circumstances so require the Local Government Board may make any such order as appears to them to be necessary to give effect to the provisions of this Article and may by the said order vary so far as is requisite any provisions in force with regard to any list or matter to which this Article relates and any order made in pursuance of this subdivision shall have effect as if it were enacted in and formed part of this Order.

Art. XXVII.—(1) Every person who has acquired or who on or before the commencement of this Order shall acquire a settlement in any existing parish affected by this Order shall be deemed to have acquired a settlement in the parish comprising the area in which the acts or circumstances conferring such settlement shall have been done or occurred. If such acts or circumstances shall have been done or occurred in more than one parish such settlement shall be in the parish comprising the place of residence of such person at the time of acquiring such settlement.

Settlement of
paupers.

(2) Any person who shall have acquired a status of irremovability from any existing parish affected by this Order shall be deemed to have acquired a status of irremovability from the parish comprising the area in which he shall reside at the commencement of this Order or (if he shall then be in receipt of relief) from the parish comprising the area in which he was residing at the time of becoming chargeable.

Irremovability
of paupers.

[Ch. lxxxi.] *Local Government Board's* [3 EDW. 7.]
Provisional Order Confirmation (No. 16) Act, 1903.

A.D. 1903. (3) For all purposes of settlement and removal residence prior to the commencement of this Order in either of the Tooting Graveney areas or the Mitcham area shall be deemed to have been residence in the parish in which the area is included by this Order.

—
London and Surrey Order.

Saving for existing contribution orders of Guardians and Rural District Council. Art. XXVIII. Notwithstanding the alterations in the areas of parishes effected by this Order all contribution orders made by the Guardians of the Poor of the Wandsworth and Clapham Union and the Croydon Union and all precepts issued by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Preparation of future contribution orders. Art. XXIX. For the purpose of apportioning the estimated expenditure of the Guardians of the Poor of the Wandsworth and Clapham Union and the Croydon Union and of the Rural Council in respect of the half-year ending on the Thirtieth day of September One thousand nine hundred and four and of preparing contribution orders and precepts prior to the commencement of this Order this Order shall so far as may be necessary be deemed to have taken effect prior to the last-mentioned date.

Arrears of rates. Art. XXX. All arrears of rates made by the Overseers of the Poor of the Parish of Mitcham and due or owing at the commencement of this Order in respect of hereditaments in the Mitcham area shall be collected and recovered as if this Order had not been made.

Short title. Art. XXXI. This Order may be cited as the Counties of London and Surrey (Wandsworth and Mitcham) Order 1903.

Given under the Seal of Office of the Local Government Board this
Fourteenth day of May One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President,
S. B. PROVIS Secretary.

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